



Disability: Qualified Individuals

Overview

An individual with a disability has to be qualified for the job at issue when challenging employment actions by federal agencies under the Rehabilitation Act of 1973. In determining whether a violation has occurred, the Rehabilitation Act applies the standards for set forth in the Americans with Disabilities Act 1990, and more recently, the ADA Amendments Act.

The "term 'qualified,' with respect to an individual with a disability, means that the individual satisfies the requisite skill, experience, education, and other job-related requirements of the employment position such individual holds or desires and, with or without reasonable accommodation, can perform the essential functions of such position." [29 CFR 1630.2](#) (m). Some limited exceptions to this definition can be found [29 CFR 1630.3](#).

Further, an agency can require that the individual not pose a direct threat to health and safety in the workplace. A direct threat is defined as "a significant risk of substantial harm to the health and safety of the individual or others that cannot be eliminated or reduced by reasonable accommodation." [29 CFR 1630.2](#) (r).

For complete information on analyzing disability discrimination claims, see the [Quick Start Guide: Disability Discrimination -- The Basics](#).

This Quick Start Guide covers the following Key Points:

1. [The basics](#)
2. [Individualized assessment](#)
3. [Essential functions](#)
4. [Reasonable accommodation](#)
5. [Qualification standards](#)
6. [Direct threat](#)
7. [Employee found not qualified](#)
8. [Employee found qualified](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

The basics

- A disability, with regard to an individual, is:
 - i. A physical or mental impairment that substantially limits one or more of the major life activities of such individual;
 - ii. A record of such an impairment; or
 - iii. Being regarded as having such an impairment. [42 USC 12102](#) (1).
- For more information on determining whether an individual falls within the protections of the Rehabilitation Act, see the [Quick Start Guide: Disability Discrimination -- The Basics](#).
- An individual with a disability has to be qualified for the job at issue when challenging employment actions by federal agencies under the Rehabilitation Act of 1973. [42 USC 12112](#); [29 CFR 1630.4](#) (a).
- Under EEOC regulations, the "term '*qualified*,' with respect to an individual with a disability, means that the individual satisfies the requisite skill, experience, education and other job-related requirements of the employment position such individual holds or desires and, with or without reasonable accommodation, can perform the essential functions of such position." [29 CFR 1630.2](#) (m).
- **Hadley:** In order to be protected under the ADA, an individual with a disability must be "qualified," which was previously referred to as "otherwise qualified." In other words, an individual must have a disability, meet the minimal qualifications for the job he or she holds or desires, and be able to perform the essential functions of that job with or without reasonable accommodation. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Qualified Individuals](#).
- Where an employee has performed a modified position for an extended amount of time, that is the position which is considered for purposes of deciding whether the employee is a qualified individual with a disability. *Velva B. v. U.S. Postal Service*, [118 LRP 10180](#), EEOC Nos. 0520180094, 0520180095 (EEOC OFO 2018).
- The term "position" is not limited to the position held by the employee, but it also includes positions that the employee could have held as result of reassignment. Therefore, in determining whether an employee is "qualified," an agency must look beyond the position the employee presently occupies. *McKinnon v. U.S. Postal Service*, [108 LRP 23284](#), EEOC No. 0120063226 (EEOC OFO 2008).

- An individual *currently* engaging in the illegal use of drugs is not considered an individual with a disability or qualified when an employee acts on the basis of that use. [29 CFR 1630.3](#).

Individualized assessment

- Agencies must assess the impairments and circumstances of candidates on an individualized basis before determining whether they are qualified for a particular position. *Smith v. Department of State*, [108 LRP 1543](#), EEOC No. 0120055349 (EEOC OFO 2008).
- **Hadley:** Because the determination of whether a particular individual with a disability is qualified requires consideration of the specific position that individual holds or desires, it is entirely possible, if not likely, that the same individual could be a qualified individual with a disability with regard to one position but not a different position. This latter observation simply underscores the need for a case-by-case determination of whether an individual with a disability is qualified. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Defining Qualified Individuals](#).

Essential functions

- **Hadley:** The employee must establish that she can perform the essential functions of the position with or without accommodation in order to be qualified. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Qualified Individuals](#).
- The term "essential functions" means the fundamental job duties of the employment position the individual with a disability holds or desires. It does not include the marginal functions of the position. [29 CFR 1630.2](#) (n).
- A job function may be considered essential for a number of reasons, including, but not limited to, those outlined by [29 CFR 1630.2](#) (2):
 - i. The function may be essential because the reason the position exists is to perform that function.
 - ii. The function may be essential because of the limited number of employees available among whom the performance of that job function can be distributed.
 - iii. The function may be highly specialized so that the incumbent in the position is hired for his or her expertise or ability to perform the particular function.
- Under [29 CFR 1630.2](#) (n)(3), the type of evidence to be considered in making a determination concerning the essential functions of position includes:
 - i. The employer's judgment as to which functions are essential.
 - ii. Written job descriptions prepared before advertising or interviewing applicants for the job.
 - iii. The amount of time spent performing the function.
 - iv. The consequences of not requiring the incumbent to perform the function.
 - v. The terms of the collective bargaining agreement.
 - vi. The work experience of past incumbents in the job.
 - vii. The current work experience of incumbents in similar jobs.
- The essential functions of a job are the duties or outcomes that must be achieved by an employee, and the proper way to determine if a person is qualified for a job is to determine if that person can perform the essential functions when at work. *Petitioner v. Department of Homeland Security, Customs and Border Protection*, 0320110053, [114 LRP 32342](#) (EEOC 2014), *adopted by the Special Panel, Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 2014).
- While "attendance can be a condition precedent to performing a function," or a method by which essential functions are accomplished, attendance is not a job function in and of itself. As with other methods of accomplishing essential functions, the EEOC states that timing of attendance are "subject to the law's obligation to provide a reasonable accommodation that does not impose an undue hardship." *Petitioner v. Department of Homeland Security, Customs and Border Protection*, 0320110053, [114 LRP 32342](#) (EEOC 2014), *adopted by the Special Panel, Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 2014).
- The employer's judgment as to what functions are essential is only one factor taken into consideration by the fact-finder who will ultimately determine the essential functions of a position. That fact-finder is the EEOC. The EEOC has final authority to determine what an "essential function" is -- not the agency. Further, consistent with the authority granted to the EEOC by Congress, the EEOC has the authority to define the limits of "essential functions" in both regulation and guidance. *Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 2014).
- The complainant, who had a hearing impairment, was not qualified for her job because she could not perform its essential functions. Despite efforts with communication technologies, management officials received numerous complaints regarding her difficulties communicating on the telephone and her inability to relay messages. It was not required to eliminate an essential function of her position as an accommodation. *Miller v. Department of Veterans Affairs*, [113 LRP 24310](#), EEOC No. 0120110565 (EEOC OFO 2013).
- **Hadley:** When an employee cannot perform the essential functions of her position and there are no vacant, funded reassignment positions available, this constitutes a legitimate, nondiscriminatory reason for the complainant's termination. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Reassignment and Modifying Essential Functions](#).

Reasonable accommodation

- In the absence of undue hardship, agencies are required to reasonably accommodate an otherwise qualified individual who meets the definition of disability under the "actual disability" prong or "record of" prong. Agencies are not required to reasonably accommodate individuals who fall within the definition of disability because they are "regarded as" individuals with disabilities. [29 CFR 1630.2](#) (o)(4).
- A federal agency must make reasonable accommodation for the known physical or mental limitations of a qualified employee unless the agency can demonstrate that the accommodation would impose an undue hardship on the operation of its program. [29 CFR 1630.9](#) (a); *Williams v. U.S. Postal Service*, [110 LRP 12644](#), EEOC No. 0120073935 (EEOC OFO 2010).
- "It is not sufficient to merely state in a conclusory manner that an accommodation would be an undue hardship. The undue hardship burden is a 'rigorous one' and the agency must 'prove convincingly' that such a hardship actually exists." *Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 2014).
- Evidence that an employee was able to successfully perform her modified duties for a 10-year period with accommodations can support a determination that she is a qualified individual with a disability. *Cecille W. v. U.S. Postal Service*, [120 LRP 25238](#), EEOC No. 0120181915 (EEOC OFO 2020).
- In determining whether an employee is "qualified," an agency may have to look beyond the position which the employee currently occupies. However, in the case of a probationary employee who was never qualified for the position he held, the EEOC has said the agency is not obligated to reassign him as a reasonable accommodation prior to his termination. *Shon T. v. Department of Commerce, Patent and Trademark Office*, [120 LRP 38561](#), EEOC No. 2020000125 (EEOC OFO 2020).
- For more information on reasonable accommodation, see the [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#).

Qualification standards

- Generally, it is unlawful for an agency "to use qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual with a disability or a class of individuals with disabilities, on the basis of disability, unless the standard, test, or other selection criteria, as used by the covered entity, is shown to be job related for the position in question and is consistent with business necessity." [29 CFR 1630.10](#) (a).
- Although the ameliorative effects of ordinary eyeglasses or contact lenses may be considered in determining if an individual is substantially limited in a major life activity, [29 CFR 1630.2](#) (j)(1)(vi), an agency may not "use qualification standards, employment tests, or other selection criteria based on an individual's uncorrected vision unless the standard, test, or other selection criterion, as used by the covered entity, is shown to be job related for the position in question and is consistent with business necessity." [29 CFR 1630.10](#) (b).
- It is unlawful for an agency to use qualification standards, employment tests, or other selection criteria that screen out or tend to screen out an individual with a disability unless the standard, test, or other selection criteria is shown to be job-related for the position and consistent with business necessity. *Jones v. Social Security Administration*, [111 LRP 54707](#), EEOC No. 0720070002 (EEOC C 2011).
- The agency asserted that the complainant police officers with pseudofolliculitis barbae were unable to meet its safety-related qualification standard that required all police officers, without exception, to have clean-shaven facial skin at all times in order to wear a specially identified respirator mask. However, the EEOC found the agency failed to meet its burden of proving that there was no accommodation that would enable the officers to meet the existing standard or no alternative approach through which it could determine whether the officers could perform the essential function involved. The agency's general conclusory statements as to a potential risk of a mask seal failure in an emergency situation were without evidentiary support. *Cleveland C., et al. v. Department of Defense, Office of the Secretary of Defense*, [121 LRP 40839](#), EEOC No. 2020003894, et al. (EEOC OFO 2021).
- An applicant was subjected to disability discrimination based on his brain injury when the agency denied his request that interview questions in an employment test be additionally provided in writing. The EEOC found the agency did not show the use of the test, without an accommodation, was job-related and consistent with business necessity. The evidence did not show that providing questions in both written and oral form was unreasonable or undermined or changed the task being assessed. *Jones v. Social Security Administration*, [111 LRP 54707](#), EEOC No. 0720070002 (EEOC OFO 2011), request for reconsideration denied, *Jones v. Social Security Administration*, [113 LRP 18219](#), EEOC No. 0520110682 (EEOC OFO 2013).
- The Aviation and Transportation Security Act gives the Transportation Security Administration broad authority to establish the terms and conditions of employment for airport security screeners, but the TSA must comply with the Rehabilitation Act when there is no conflict between the ATSA-mandated qualification standards and the requirements of the Rehabilitation Act. *Getzlow v. Department of Homeland Security*, [107 LRP 38184](#), EEOC No. 0120053286 (EEOC 2007).
- A transportation security officer for the Transportation Security Administration was not subjected to discrimination based on his disability (r obstructive sleep apnea and a circadian rhythm disorder, shift work type) when he was removed based on his medical documentation, which indicated he could not meet the Aviation and Transportation Security Act mandated qualifications necessary to perform the essential functions of the position. Accordingly, he was qualified for his position. The agency initiated a reassignment search but was unable to locate suitable positions, and the officer presented no evidence that there was a vacant, funded position into which he could be reassigned. *Anthony M. v. Department of Homeland Security, Transportation Security Administration*, [122 LRP 16994](#), EEOC No. 2021001275 (EEOC OFO 2022).
- The complainant, who was bipolar, was not qualified for a screener position because her reaction to initial testing established that she could not work in an active airport environment and the qualification standards did not allow for accommodation. *Getzlow v. Department of Homeland Security*, [107 LRP 38184](#), EEOC No. 0120053286 (EEOC 2007).
- A transportation security officer for the Transportation Security Administration was not subjected to discrimination when she was removed. She was not qualified for her position because she could not meet the medical requirements mandated by the Aviation and Transportation Security Act. Specifically, she could not lift 70 pounds. *Windy H. v. Department of Homeland Security, Transportation Security Administration*, [117 LRP 35504](#), EEOC No. 0120152971 (EEOC OFO 2017).
- An applicant for a transportation security officer position with the Transportation Security Administration was not a qualified individual with a disability because of her sickle cell disease and headaches. The agency's medical guidelines disqualify individuals with conditions that

require sedation medication or pain that interferes with activity. *Chelsie L. v. Department of Homeland Security, Transportation Security Administration*, [117 LRP 983](#), EEOC No. 0120140618 (EEOC OFO 2016).

Direct threat

- An agency can require that the individual not pose a direct threat to health and safety in the workplace. A direct threat is defined as "a significant risk of substantial harm to the health and safety of the individual or others that cannot be eliminated or reduced by reasonable accommodation." [29 CFR 1630.2](#) (r).
- To determine if an individual poses a direct threat, the agency must conduct "an individualized assessment of the individual's present ability to safely perform the essential functions of the job." [29 CFR 1630.2](#) (r).
- An applicant for a distribution process worker position with the Defense Logistics Agency alleged that the agency subjected him to discrimination based on disability (right shoulder) when it withdrew a tentative job offer. Although there was evidence that his lifting limitation could have been accommodated, the EEOC found that the agency properly determined that the applicant was unable to safely perform the essential functions of the position because of his habitual use of narcotic medication that was known to impair his function and presented safety hazard. *Merle S. v. Department of Defense, Defense Logistics Agency*, [118 LRP 39917](#), EEOC No. 0120160060 (EEOC OFO 2018).
- The Department of Defense subjected an applicant to disability discrimination when it withdrew its tentative offer of employment after finding he was not medically qualified for the position because of his post-traumatic stress disorder. The EEOC found that the agency did not demonstrate that the applicant would have posed a direct threat to safety, but instead imposed a bright-line rule that demonstrated stereotyping of individuals with PTSD. *Cleckler v. Department of Defense, Defense Logistics Agency*, [113 LRP 14271](#), EEOC No. 0120091162 (EEOC OFO 2013).
- The agency subjected a nurse to discrimination when it ordered her to undergo a fitness-for-duty examination. The agency explained that it ordered the exam because the nurse became violent toward a coworker. The EEOC found, however, that the agency failed to prove its order was based on objective evidence that the nurse was unable to perform the essential functions of her job or posed a direct threat because of a medical condition. The EEOC found the conduct warranted discipline, but not an exam. *Snowden v. Department of Veterans Affairs*, [111 LRP 62166](#), EEOC No. 0120083032 (EEOC OFO 2011).
- The agency did not subject the complainant to discrimination based on his epilepsy when it denied his request to return to work. He was not qualified for his position because his job required him to constantly work around machinery, and his numerous and unpredictable seizures which caused him to fall to the floor, posed a threat to his safety. There was no evidence of another position to which he could have been transferred. *Seymour v. U.S. Postal Service*, [112 LRP 38239](#), EEOC No. 0120093459 (EEOC OFO 2012).
- For complete information on direct threat, see the [Quick Start Guide: Direct Threat](#).

Employee found not qualified

- A supervisory transportation security officer for the Transportation Security Administration was not qualified because he could not perform essential functions of his position due to his back condition. He was restricted to lifting no more than 15 pounds and could not climb, knee, squat, bend, or stoop to inspect individuals and baggage. The officer maintained that he could have performed light duty, but there was no indication that there was work for him within his medical restrictions. He also did not establish that there was a vacant, funded position to which he could have been reassigned because he decided not to participate in the agency's job search program but instead opted for disability retirement. *Bryan T. v. Department of Homeland Security, Transportation Security Administration*, [122 LRP 9816](#), EEOC No. 2021001366 (EEOC OFO 2022).
- A patent examiner for the Patent and Trademark Office was an individual with a disability but was not "qualified." His medical care provided indicated that his impairments limited his ability to meet the stringent time standards required of his position and stated there was no accommodation that would allow him to perform the essential functions of his job, due to the permanency of his condition and his resulting limitations. As expectations increased during the examiner's training process, he was unable to adequately perform the essential functions and, therefore, was never "qualified" for the position. *Shon T. v. Department of Commerce, Patent and Trademark Office*, [120 LRP 38561](#), EEOC No. 2020000125 (EEOC OFO 2020).
- An emergency management specialist with post-traumatic stress disorder was not a qualified individual with a disability. There was no reasonable accommodation that would enable the specialist to carry out the essential function of deployment-related travel. He was not eligible for reassignment because he was never qualified for the position for which he was hired. *Bruce P. v. Department of Homeland Security, Federal Emergency Management Agency*, [120 LRP 18230](#), EEOC No. 0120182117 (EEOC OFO 2020).
- The complainant was not qualified for her position because of her poor performance. Accordingly, she was not entitled to telework as a reasonable accommodation. *Tabetha M. v. Department of Defense, Defense Logistics Agency*, [117 LRP 5546](#), EEOC No. 0120141996 (EEOC OFO 2017).
- Although a mail handler tech had a disability due to a workplace injury, he was not a qualified individual with a disability because he could not perform the essential functions of his position. He had extensive standing, walking, and lifting restrictions and restrictions operating machinery, while his position required physical activity outside his restrictions. The agency searched for other work, but was unsuccessful. *Jamey M. v. U.S. Postal Service*, [116 LRP 50592](#), EEOC No. 0120142223 (EEOC OFO 2016).
- A food service worker for the Army was not a qualified individual with a disability because his severe allergies to foods, cleaners, and the latex in his work gloves prevented him from performing the essential functions of his position and no position existed to which he could have been reassigned. *Earnest G. v. Department of the Army*, [116 LRP 41976](#), EEOC No. 0120140488 (EEOC OFO 2016).
- A forest botanist for the Department of Agriculture was not unlawfully denied reasonable accommodation. She failed to establish that she was a qualified individual with a disability because her medical restrictions precluded the level of walking that was required to perform the essential functions of her position. Further, there was no vacant position to which she could be reassigned. *Karol K. v. Department of Agriculture*, [116 LRP 38094](#), EEOC No. 0120140323 (EEOC OFO 2016).
- A corrections officer for the Federal Bureau of Prisons was not a qualified individual with a disability when he was sent home on leave. His position required him to work posts ensuring the safety and security of the facility by supervising inmates, conducting shakedowns of cells conducting pat searches, and responding to body alarms. He could not perform the essential functions of his position when he was taking

narcotic medication for his pain that made him drowsy. *Adam D. v. Department of Justice, Federal Bureau of Prisons*, [116 LRP 1622](#), EEOC No. 0120121770 (EEOC OFO 2015).

- A lead transportation security officer for the Transportation Security Administration was not subjected to disability discrimination when she was terminated. She could not perform the essential functions of her position because of her mental conditions. Her treating physician and another psychiatrist who provided a second opinion both stated that she was not able to return to work in any capacity. *Washington v. Department of Homeland Security, Transportation Security Administration*, [113 LRP 18437](#), EEOC No. 0120110972 (EEOC OFO 2013).
- The complainant was not qualified for her position because her permanent medical restrictions prevented her from being able to perform the essential functions of her position with or without a reasonable accommodation. There was no position to which she could be reassigned with an accommodation. *Mireles v. U.S. Postal Service*, [113 LRP 5254](#), EEOC No. 0120111195 (EEOC OFO 2013).
- A general clerk with the U.S. Postal Service who had migraine headaches failed to establish that she qualified for a new position she sought. She was restricted to only driving vehicles equipped with air conditioning. The position she sought required driving a full range of vehicles, most of which did not have air conditioning. She asserted that the driving duties could have been removed from the position. However, the EEOC noted that an agency is not required to remove any of the essential functions of a position as a reasonable accommodation. *McDonald v. U.S. Postal Service*, [113 LRP 1984](#), EEOC No. 0120110120 (EEOC OFO 2012).
- A transportation security officer for the Transportation Security Administration was not subjected to disability discrimination when he was terminated. He was not qualified. The essential functions of his position included repeatedly lifting and carrying objects weighing up to 70 pounds. His doctor indicated that he could not meet the lifting requirement because of an elbow condition, and he identified no reasonable accommodations that would have allowed him to perform the essential functions of his position. *Camadini v. Department of Homeland Security, Transportation Security Administration*, [112 LRP 59987](#), EEOC No. 0120103387 (EEOC OFO 2012).
- A tractor operator for the National Park Service was not qualified for his position. He could not fully perform the essential functions of his position as a result of medical restrictions related to a shoulder injury. He asserted that the agency could have accommodated him by assigning another employee to perform the physical duties of his position that exceeded his medical restrictions, but the duties at issue were essential functions of his position, and the agency was not required to remove them. *Bulka v. Department of the Interior, National Park Service*, [112 LRP 58424](#), EEOC No. 0120100184 (EEOC OFO 2012).
- A telecommunications equipment operator for the Department of Defense was not qualified. The essential functions of her position require her to work in a high-pressure, stressful environment and required the use of a radio, which exacerbated her severe uncontrolled blood pressure. She did not identify a reasonable accommodation that would have permitted her to perform the essential functions of her position and she did not identify a position to which she could be reassigned. *Prophet v. Department of Defense*, [112 LRP 5593](#), EEOC No. 0120122435 (EEOC OFO 2012).
- The complainant was not subjected to disability discrimination when she was terminated after being on leave without pay for a lengthy period because of her fibromyalgia. Her medical information indicated that she was not qualified for her position because she was totally incapacitated with no prospects of returning to work. *Vinson v. Social Security Administration*, [112 LRP 49904](#), EEOC No. 0120121656 (EEOC OFO 2012).
- A qualified individual with a disability can perform the essential functions of her position with or without reasonable accommodation. A nurse with a 15-pound lifting restriction cannot perform the essential functions of her position when the position requires lifting 50 pounds. *Garland v. Department of Health and Human Services, Indian Health Service*, [110 LRP 45222](#), EEOC No. 0120101310 (EEOC OFO 2010).
- The petitioner wasn't subjected to disability discrimination when he was terminated for being absent without leave and failure to follow leave procedures. He was not a qualified individual with a disability because his previous poor performance and inadequate knowledge prevented him from working at home, the only accommodation he sought. *Yeargins v. Department of Housing and Urban Development*, [110 LRP 30361](#), EEOC No. 0320100021 (EEOC OFO 2010).
- The complainant, who had dyslexia, was not entitled to reasonable accommodation in the form of an oral preemployment examination because he was not qualified for the security screener position he sought. He could not meet the reading qualification standard that was mandated by the Aviation and Transportation Security Act and addressed an essential function of the position. *Freese v. Department of Homeland Security*, [109 LRP 43325](#), EEOC No. 0120070755 (EEOC OFO 2009).
- The complainant was not subjected to disability discrimination when he was found ineligible for an immigration inspector position because of his physical limitations. He was not qualified for the position because his physical impairments limited his ability to perform the types of actions necessary to prevent people from illegally entering the U.S. *Reyes v. Department of Homeland Security*, [103 LRP 53944](#), EEOC No. 01A24050 (EEOC OFO 2003).
- The complainant was not qualified because she was absent from work for a significant period as a result of her mental condition and could not indicate when she would be able to return. *Carney v. Federal Deposit Insurance Corporation*, [100 FEOR 316](#), EEOC No. 01986113 (EEOC 2000). However, it is important to note that an absentee employee with a disability can be qualified under certain circumstances. See *Southerland v. U.S. Postal Service*, [94 FEOR 3520](#), EEOC No. 05930714 (EEOC 1994).
- The complainant could not establish she was qualified because she could not show that her numerous restrictions would allow her to perform the essential functions of her position with or without reasonable accommodation. The health and safety of patients was the agency's primary concern, and it could not discontinue use of the chemicals on the complainant's list and maintain the clean and sanitary conditions necessary for a hospital. *Michaels v. Department of Veterans Affairs*, [101 FEOR 3052](#), EEOC No. 01973478 (EEOC 2000).

Employee found qualified

- A postal support employee with epilepsy was subjected to disability discrimination when the agency failed to provide her with reasonable accommodation, did not offer a reassignment, and removed her. The EEOC found the associate was an individual with a disability and that she was qualified. A manager said she could not perform the essential functions of working nighttime and early morning hours. However, the manager's statement that the agency offered her a position that required only daylight work hours undermined the agency's argument that working nighttime or early hours was an essential function. *Mirta Z. v. U.S. Postal Service*, [121 LRP 7125](#), EEOC No. 2020000383 (EEOC OFO 2021).

- A rural mail carrier's 20-pound carrying restriction did not render her unable to perform the essential functions of her position. She was able to case and deliver her assigned mail for many years by taking informal accommodative steps such as utilizing a collapsible hand truck to carry heavy items, using a wooden platform to case mail, and cutting heavy trays into smaller more manageable trays. Her position description listed an essential function of the ability to lift up to 70 pounds and carry items weighing over 45 pounds. However, carriers rarely lifted 70-pound packages and could ask for assistance. The primary outcome of the position was to case and deliver mail. The carrier showed that she could continue to case and deliver mail if given the same reasonable accommodations as provided in the past. *Cecille W. v. U.S. Postal Service*, [120 LRP 25238](#), EEOC No. 0120181915 (EEOC OFO 2020).
- The U.S. Postal Service subjected a clerk to discrimination based on disability when it did not allow her to return to work based on her lift restriction. The EEOC found she was qualified for her position because she could split her lift trays to make them manageable, and the agency did not show that allowing her to do so would be an undue hardship. *Complainant v. U.S. Postal Service*, [0120113802](#), [115 LRP 47415](#) (EEOC 2015).
- Although he could not work overnight shifts because of his sleep apnea, the petitioner was qualified for his Customs and Border Protection Officer position because he could perform the essential functions of his job while at work. Given the great number of officers at his facility and the agency's previous ability to accommodate him, the EEOC found that excusing the petitioner from overnight shifts in this specific case would not be an undue hardship. *Petitioner v. Department of Homeland Security, Customs and Border Protection*, [0320110053](#), [114 LRP 32342](#) (EEOC 2014).
- The agency subjected an auditor to disability discrimination when it failed to properly consider reassignment as a reasonable accommodation. Although she could not continue to perform the essential functions of her position, she was a qualified individual with a disability because she could have performed the essential functions of a lower graded position with or without accommodation. *Bartron Department of Defense, Office of the Defense Inspector General*, [111 LRP 18364](#), EEOC No. 072010005 (EEOC OFO 2011).
- The Department of State unlawfully determined that the complainant, who was substantially limited in the major life activity of waste elimination, was not qualified for a Foreign Service position. It denied her a medical clearance based on its unsupported determinations that she was not available for worldwide posting because of her need for specific medical facilities. *Katz v. Department of State and Agency for International Development*, [109 LRP 18132](#), EEOC No. 0720060024 (EEOC 2009).
- The agency argued the complainant, a nurse, was not qualified because her impairments, which allegedly included obesity and hypertension, created a safety risk. However, it failed to show how the complainant posed a direct threat to safety in her nursing position. *Evey v. Department of Veterans Affairs*, [101 FEOR 3009](#), EEOC No. 01970718 (EEOC 2000).
- After determining that the complainant was a qualified individual with a disability, the EEOC concluded that the agency failed to reasonably accommodate her physical disability (strokes) when it did not consider permanently reassigning her to an existing agency position requiring strictly sedentary duties. *Bradley v. U.S. Postal Service*, [99 FEOR 3086](#), EEOC No. 01962747 (EEOC 1998).

Other Resources

- [Quick Start Guide: Disability Discrimination -- The Basics](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [Quick Start Guide: Direct Threat](#)
- [Quick Start Guide: Drug Abuse](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 02 -- Defining Qualified Individuals, Section K -- Medical Evidence, Subsection 01 -- Reasonable Medical Documentation](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 02: Defining Qualified Individuals, Section H: Demonstration of Qualified](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 02: Defining Qualified Individuals, Section J: Requests for Accommodation](#)

Please share your experience and expertise. Forward any suggested additions or changes to this or other Quick Start Guides to QSGeditor@lrp.com.



© LRP Publications. All Rights Reserved.